TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
MARCH 27, 2023
MINUTES

STAFF REPORT

Present: Steven Wood, Chair, Giles Branch, Megan Stevens, Elliott Barrow, Aaron Butner, Molly Hall.
Absent: Julian Hopkins (excused)
Staff: Chris Swalhah, James Ward, Lynnette Lynes

Mr. Wood called the meeting to order at 6:21 pm.

A. Approval of Agenda

- *Ms. Hall moved for approval of the agenda. Ms. Stevens seconded the motion. All in favor.*

B. Approval of Minutes

- *Ms. Hall moved for approval of the minutes. Mr. Butner seconded the motion. All in favor.*

C. Public Comment

- There being no comment, Mr. Wood continued with the agenda.

D. General Correspondence

Correspondence received was linked to the agenda and distributed to the Board.

E. Explanation of Procedures
F. Administration of Oath

Mr. Wood reviewed the procedures with the public and administered the oath to those speaking.

G. Business

1. **Case V-06-23, 1300 Penshell Place, TMS# 560-06-00-226. Request for relief from the strict application of the Watermark Planned Development**

Ordinance to allow a 6-foot 9-inch encroachment into the required 10-foot rear yard setback to construct a pool.

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. Keith Lincoln, owner, reviewed the request with the Board.

- There being no comments, Mr. Wood moved to Board questions.

- Mr. Wood closed the public hearing.

- *Mr. Barrow moved for denial based on the findings that the request did not meeting the criteria as only one of the criteria was met with regard to the request not being a detriment to the neighborhood; however, there are no extraordinary conditions, the conditions for setbacks apply to other property in the neighborhood, and denial would not unreasonably restrict utilization of the property. Mr. Branch seconded the motion. All in favor.*

2. Case V-07-23, 715 Simmons Street, TMS# 532-05-00-109. Request for relief from the strict application of §156.140(D)(5) to make improvements to an existing nonconforming structure; where the value of said improvements exceed 50% of the property's assessed value.

- Mr. Swalhah reviewed staff comments with the Board and read correspondence for the Board.

- Mr. Jairy Hunter, owner, and Ms. Theresa Stanton, project manager, reviewed the request with the Board.

- Mr. Jason Walton, 705 Simmons, stated that they are opposed to the construction of the ADU. He stated that the owner was aware of the non-conforming use of the garage when the home was purchased. He suggested that denial would not unreasonably restrict the property as the home is currently lived in. He suggested that this request would be a detriment to the neighborhood and to him as the adjacent property owner as the ADU would tower over their property.

- Mr. Hunter stated that he was not aware of the objection to the ADU prior to a few days ago; the only issue was the placement of the windows. He suggested that they are not required to share the plans with the neighbors. He stated that he was not aware the structure was non-conforming.

- Mr. Wood closed public comment.

- *Ms. Stevens moved for denial based on the findings that the criteria has not been met as there is no hardship. Ms. Hall seconded the motion. All in favor.*

3. Case V-08-23, 717 Royall Avenue, TMS #532-09-00-092. Request for relief from the strict application of §156.313(E)(5)(b)(1) to allow the construction of an Accessory Dwelling unit in the front yard. The ordinance requires Accessory Dwelling units in the Historic District to be located in the rear yard.

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. Wentz Chesson, architect, reviewed the request with the Board.

- Mr. Wood closed public comment.

- *Mr. Barrow moved for denial based on findings that the criteria has not been met as there are no extraordinary conditions, conditions do apply to other property as other homes are built to rear of the lot, denial would not prohibit or unreasonably restrict utilization of the property, and the construction of the ADU would be a detriment to the neighborhood as there are guidelines restricting ADUs in front yard. Mr. Butner seconded the motion. All in favor.*

4. Case V-09-23, 1437 Appling Drive, TMS #560-06-00-098. Request for relief from the strict application of §156.303(Table) to allow an 8-foot encroachment into the required 25-foot rear yard setback to construct a covered porch.

- Mr. Swalhah reviewed staff comments with the Board.

- Ms. Karen Baker and Mr. Nicholas Baker, owners, reviewed the request with the Board.

- Mr. Wood closed public comment.

- *Mr. Branch moved for denial based on findings that the request does not meet the criteria as there is an existing porch, it is similar to other lots in the neighborhood, and is in compliance with Town ordinances. Mr. Barrow seconded the motion. All in favor.*

5. Case V-10-23, 133 3rd Avenue, TMS #514-05-00-047. Request for relief from the strict application of 156.225(C) to allow the removal of a 45'' Live Oak Tree.

- Mr. Swalhah reviewed staff comments with the Board and read correspondence.

- Mr. Mike Majesky, contract owner, and Mr. Drew Salizar, real estate agent, reviewed the request with the Board.

- Mr. David McSweeney, 138 3rd Avenue, stated that Mr. Majesky has the property under contract and is not the current owner. He suggested that the request does not meet the criteria for a variance. He also referred to the OCRM critical line and suggested that proposed home is in the OCRM critical line buffer.

Mr. Swalhah noted that there is no critical line buffer for this property.

- Mr. Wood administered the oath to Ms. Vandross.

- Ms. Cynthia Vandross, 228 6th Avenue, expressed concern with removal of the tree in a historic neighborhood. She expressed concern that this property will not be the primary residence of the owner. She suggested that the property was a part of the marsh. She suggested that the historic character of the neighborhood should be maintained and preserved. She also expressed concern that this property might not be owned by Ms. Ayers.

- Mr. Scott Williams, 132 Wando Reach Court, expressed concern with wanting to remove the trees in the neighborhood. He suggested that removal of a historic tree would be detrimental to the neighborhood.

- Mr. Wood closed public comment.

- *Mr. Barrow moved for denial based on findings that it has not met the criteria in that there are properties in the neighborhood that have trees and are in a historic neighborhood, conditions might apply to other properties as other properties might have historic oak trees on them, the tree was in existence prior to the potential purchase of the property, and removal of the tree would have a monumental deleterious effect on the adjacent properties. Mr. Wood seconded the motion. Motion passed on a 4 to 2 vote with Mr. Butner, Mr. Barrow, Ms. Hall, and Mr. Wood in favor; Mr. Branch and Ms. Stevens opposed.*

6. **Case V-11-23, 1244 Melvin Bennett Road, TMS #560-02-00-011. Request for relief from the strict application 156.107(B)(3) to allow a 22' encroachment into the front yard setback. The ordinance requires two front yard setbacks on lots facing two nonintersecting streets.**

- Mr. Swalhah reviewed staff comments with the Board and read correspondence.

- Mr. Christian Ensminger, owner, reviewed the request with the Board.

- Mr. Wood closed public comment.

- *Ms. Hall moved for approval based on the findings that a similar circumstance was previously approved and there is a precedent. Mr. Butner seconded the motion. Motion passed on a 4 to 2 vote with Mr. Butner, Mr. Branch, Ms. Stevens, and Ms. Hall in favor; Mr. Barrow and Mr. Wood opposed.*

7. **Case V-12-23, 1276 Royal Troon Court, TMS #599-09-00-028. Request for relief from §156.303(Table) to allow a 2.8-foot encroachment into the required 20-foot rear setback to construct an addition.**

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. Andrew Knighten and Ms. Christiane Knighten, owners, reviewed the request with the Board.

- Mr. Bill Hartness, president of Charleston National HOA, stated that they have reviewed the plans are in favor of the project.

- Mr. Wood closed public comment.

- *Ms. Stevens moved for approval based on the findings that the criteria has been met as the lot is an irregular shape, the home is built askew on the lot, the setbacks are incorrect on site plan, there is no other area to build onto the home, and there is no detriment to the neighborhood as the addition will not be seen from street and the homeowner's association is in favor of the proposed project. Mr. Butner seconded the motion. All in favor.*

8. **Case V-13-23, 1428 Hindman Avenue, TMS #532-10-00-201. Request for relief from the strict application of §156.303(Table) and §156.140(D)(5) to allow a 4-foot 5-inch encroachment into the front setback and improvements upon the existing nonconforming structure; where the value of said improvements exceeds 50% of the property's assessed value.**

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. Erin Dhand and Mr. Sandeep Dhand, asked for deferral to next month's agenda.

- *Ms. Hall moved for approval of deferral as requested by the applicant. Mr. Branch seconded the motion. All in favor.*

H. Approval of Final Orders

- The Board signed final orders.

There being no further business, the meeting adjourned at 8:23 pm.

Submitted by,
L. Lynes
BOZA03272023